



City of Cambridge

POR 2026-135
FIRST IN COUNCIL
August 3, 2026

COUNCILLOR SIMMONS
COUNCILLOR SOBRINHO-WHEELER
COUNCILLOR MCGOVERN

- WHEREAS: The City of Cambridge has a strong interest in preventing wage theft and ensuring that workers performing labor in Cambridge are paid fully, fairly, and on time; and
- WHEREAS: Eversource and contractors and subcontractors working on Eversource's behalf frequently perform utility work within the City of Cambridge; and
- WHEREAS: Such utility work frequently requires access to Cambridge streets, sidewalks, and other public ways through City permits, approvals, and coordination; and
- WHEREAS: Eversource has indicated its support for paying prevailing wages on work performed in Cambridge, and the City appreciates that commitment; and
- WHEREAS: Weekly certified payroll reports, or similar payroll documentation, would provide a straightforward means of verifying that prevailing wage standards and other applicable wage protections are being followed by contractors and subcontractors performing this work; and
- WHEREAS: Such reporting would promote transparency, protect workers, and give the City confidence that work being performed in Cambridge's public ways complies fully with applicable wage laws; now therefore be it
- ORDERED: That the City Manager be and hereby is requested to confer with the Law Department, the Department of Public Works, the Transportation Department, and any other appropriate departments to determine whether the City may require Eversource, and any contractors or subcontractors working on Eversource's behalf in Cambridge, to submit weekly certified payroll reports or similar payroll documentation for work performed in Cambridge's public ways; and be it further
- ORDERED: That the City Manager be and hereby is requested, while this legal and operational review is underway, to seek voluntary weekly payroll reporting from Eversource covering work performed by Eversource and by its contractors and subcontractors, consistent with Eversource's stated support for prevailing wage compliance; and be it further
- ORDERED: That said review include a determination of whether utility work performed by or on behalf of Eversource in Cambridge's public ways is presently subject to Massachusetts prevailing wage and certified payroll requirements and, where such requirements do not presently apply, whether the City may establish payroll-reporting

or wage-compliance requirements through permits, regulations, agreements, ordinances, home-rule legislation, or other legally available mechanisms; and be it further

ORDERED: That said review include whether payroll reporting may be required as a condition of street-opening permits, trench permits, obstruction permits, utility permits, traffic management approvals, or any other City approval connected to work in the public way; and be it further

ORDERED: That the City Manager be and hereby is requested to report back to the City Council within 60 days, with an interim status update if additional legal or intergovernmental review is required, and that said report include, but not be limited to:

- the City's legal authority to require such reporting;
- whether and under what circumstances work performed by or on behalf of Eversource is presently subject to prevailing wage and certified payroll requirements;
- the permits, approvals, agreements, or other mechanisms that could be used to require such reporting;
- the information that could legally be required in weekly payroll reports;
- the measures necessary to protect workers' private information;
- the enforcement options available if Eversource, its contractors, or its subcontractors fail to comply; and
- whether an ordinance amendment, regulation, permit condition, home-rule petition, or state legislative change would be necessary or advisable to implement such a requirement; and be it further

ORDERED: That, if the City Manager's review concludes that an ordinance amendment, regulation, permit condition, agreement, home-rule petition, or state legislative proposal is necessary or advisable, the City Manager be and hereby is requested to provide the City Council with appropriate draft language.

A true copy;

ATTEST:-



Paula M. Crane,
Interim City Clerk



City of Cambridge

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